

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD.
AND OCEAN NETWORK EXPRESS (NORTH AMERICA) INC.**

—
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c)

**BOE RESPONSE IN OPPOSITION TO ONE PTE'S MOTION TO COMPEL
DISCOVERY RESPONSES**

Pursuant to the Commission's Rules of Practice and Procedure at 46 C.F.R. § 502.150(a)(3), the Bureau of Enforcement (BOE) files this response to Respondent Ocean Network Express PTE. LTD.'s MTC the Bureau of Enforcement to Respond to Interrogatories and Requests for Production of Documents and to Order New Answers to Requests for Admission and Appendices (MTC). In good faith, BOE has supplemented its answers, document production, and continues to search for potentially responsive documents and information. BOE will provide Respondents updates if it comes into possession of any additional information.

I. BACKGROUND

Responses to first discovery requests were due April 4, 2022. BOE emailed its written discovery responses to counsel for ONE PTE at 12:22AM on April 5, 2022. The email stated BOE's document production would follow the next day. BOE provided its document production at 9:05PM on April 5, 2022. ONE PTE was not harmed by the minimal delay.

ONE PTE's counsel emailed BOE on April 12, 2022 concerning one specific response. On April 14, 2022, ONE PTE's counsel emailed BOE stating three general ways in which ONE PTE's counsel believed BOE's responses were insufficient. Contrary to ONE PTE's certification (PTE MTC App. D), neither communication asked nor offered to confer with BOE. ONE PTE's counsel first requested to confer with BOE via an email sent at 7:32PM on April 19, 2022. BOE responded the next morning and made themselves available as soon as schedules permitted, which was late afternoon on April 20, 2022. BOE had several questions for ONE PTE. The conference to resolve discovery issues between ONE PTE and BOE was not illustrative and provided no guidance for BOE to continue its search. In general, ONE PTE's guidance to BOE was opaque. ONE PTE filed its MTC approximately an hour after conferring on April 20, 2022.

II. ARGUMENT

BOE maintains its objections to ONE PTE's Requests for Admissions, Interrogatories, and Requests for Production and asks the Presiding Officer to deny ONE PTE's MTC in full.

ONE PTE's MTC is premised on the faulty assumption that its discovery requests to BOE were proper in form, in scope, or in the type of information sought. The scope of discovery includes:

any nonprivileged matter that is relevant to any party's claim or defense - including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. ... Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence.

46 C.F.R. § 502.141(e)(1). ONE PTE is using the discovery process to make legal arguments, have BOE concede ONE PTE's view of the facts and case law, and impermissibly obtain protected classes of information.

ONE PTE's Requests for Admission are poorly written and difficult to understand. First, the requests are overbroad on their face as they lack any temporal limits. (See e.g., *SEC v. Kovzan*, No. 11-2017-JWL, 2012 U.S. Dist. LEXIS 106162, at *15 (D. Kan. July 31, 2012)). Second, they are so vague as to be unduly burdensome or impossible to answer. Unfettered by time or specificity, these requests ask BOE to admit or deny what is or has ever occurred at unidentified "courts" or at the Commission. To attempt to admit or deny fully and with any accuracy holdings and Commission case law would require hours of legal research that the other party has the ability to complete on its own. The purpose of discovery is to discover evidence and facts, not to provide free legal research to the opposing party.

ONE PTE's counsel contends multiple times that some responsive cases can be found by spending 15 minutes or less on LEXIS. By its own admission, ONE PTE's counsel has proven that the information it seeks "can be obtained from some other source that is more convenient, less burdensome, or less expensive." See 46 C.F.R. § 502.141(e)(2)(ii)(A).

Many of the Interrogatories at issue suffer from the same problems of time and vagueness. More problematic, ONE PTE continually asks what BOE contends, and then asks for all facts, case law, statutes, regulations, and other precedents that BOE would use to support the contention. BOE objected to these requests because they are attempting to elicit BOE's attorney work product, mental impressions, and pre-decisional deliberations. BOE's legal research, analysis, and conclusions are properly reserved for briefing. ONE PTE's counsel advocated for simultaneous briefing. ONE PTE has the facts of the case and a preview of BOE's case in BOE's response to ONE PTE's Motion to Dismiss.

For any request by ONE PTE seeking classes of protected and or confidential information and documentation (e.g., Requests for Admission Nos. 49 and 51), BOE maintains its objections

concerning investigatory activities and materials outside of this proceeding, and any information or documentation known to or within the custody and control of the Consumer Affairs and Dispute Resolution Services (CADRS). Information held by CADRS is confidential, privileged, and protected by the Administrative Dispute Resolution Act (ADRA). *See* 5 U.S.C. § 574.

Investigatory activities and materials are a known class of protected information and are privileged through the deliberative process. *Exclusive Tug Franchises*, Docket No. 01-06, 2002 FMC LEXIS 12, at *12-13 (FMC April 12, 2002).

III. CONCLUSION

For the above reasons, BOE requests the Presiding Officer deny ONE PTE's Ocean Network Express, PTE. LTD. Motion to Compel in full.

DATED: April 25, 2022

Respectfully submitted,

/s/ Brenda Doty
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CERTIFICATE OF SERVICE

I hereby certify that on this 25th day of April 2022, a copy of the foregoing document has been served upon all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020.

/s/ Brenda Doty